

Participant Notification: Initial Explanation of WIC, Rights & Responsibilities

Policy: During initial certification and subsequent recertification visits, WIC endorsers and participants receive an explanation to the WIC Program, including their rights and responsibilities.

Regulation: CFR 246.7 (i)(10), CFR 246.7 (j)(1)-(9), CFR246.7 (j)(4)

Procedure/Additional Guidance:

Initial Explanation of the WIC Program

- Explain the reason the participant is being enrolled on the program by stating a *connection between their eligibility and the desired health outcome*. This does not mean every risk must be reviewed, but rather is intended to summarize the reasons the participant is being enrolled. Example: “Your child is being enrolled in WIC to help him have good nutrition and to watch his growth over the next year.”
- *Food provided by the WIC program is supplemental*; it is not intended to provide all of the participant’s daily food needs.
- *A thorough nutrition assessment is the basis for individualized care*. Example: “The goal of the WIC program is to improve the health and nutrition of families. Today we are going to talk about your health and diet, which will help me tailor foods to meet your needs, and I’ll share information on organizations that may be helpful.”
- *Length of certification*. Inform each participant of the length of their certification, when their last food benefits will be issued, and that they will need to be recertified at the end of their certification period to determine if WIC benefits may continue past that period.
- *Local rules and policies*. Explain local WIC program rules or policies, including policies regarding late or missed appointments.
- *Transfer policy*. Explain the transfer policy and use of the VOC card.
- *Participant’s right to a fair hearing* if they disagree with any decision made regarding their participation in the WIC Program.
- *Referrals and importance of health care*. Provide information on how to access and use local health and nutrition services, including: the types of health services available, where they are located, how they may be obtained, and why they may be useful.
- *Correct use of the eWIC card*. See section below.
- *Shopping for their WIC food benefits* using the *Colorado WIC Food List & Shopping Guide*.
- Instruct participants on the process for receiving additional food benefits at future appointments.
- *eWIC card misuse*: Explain that giving away, selling or attempting to sell WIC foods, formula, or eWIC card online or by any other means will be considered a participant violation. Misuse of the eWIC card may result in participants being dropped or suspended from the WIC Program.
- *Substance Use and Abuse*: Provide education on the harmful effects of drug, alcohol, tobacco, and certain over-the-counter medications on fetal growth and development. For participants who admit use of these substances, discuss the fact that there are no safe levels of exposure and that quitting is recommended.
- *HIV status*: Advise all pregnant, postpartum, and breastfeeding women to know their HIV status. Provide information regarding the risks of transmitting HIV from mother to baby during pregnancy and delivery and the importance of getting early medical treatment to reduce the risk to their baby. Inform all women that HIV-positive mothers should not breastfeed.
- If the local agency is not serving all priorities, explain the nature of the WIC priority system and the participant’s priority designation.

WIC Participant Rights and Responsibilities

The *Participant Rights and Responsibilities* (R&R) document explains the basic rights of WIC participants and describes the responsibilities WIC participants must follow to continue to receive program benefits.

- Clients enrolled in the COWIC Texting Program will receive an appointment reminder text that includes a link to a video (R&R video) explaining their participant rights and responsibilities, as an alternative to reading a written copy. Clients may still request a written copy of the Rights and Responsibilities if preferred.

- At every certification and recertification appointment, staff may ask the client if they have questions about the R&R video and provide a copy (electronic or hard copy) of the R&R if requested by the client.
- If a client has not viewed the R&R video before their appointment, staff must offer the client the option to view the video at that time or provide a copy (electronic or hard copy) of the R&R for the client to read or for staff to read to the client. This document must be provided in a language the client understands. Written versions of the R&R are available in multiple languages on the COWIC website.
- At the time of certification/recertification, obtain either the endorser's signature or verbal acknowledgment to indicate they have read or viewed the R&R, understand and agree to it, and are aware of the certification end date. The signature or acknowledgement is then recorded in the client's Compass record.

In state transfer: When an active participant transfers to a different agency or clinic in Colorado, it is not necessary for the agency or clinic to have the endorser review the R&R. The signature captured from the current certification period transfers with the participant's Compass record.

Out of state transfer: Out of state transfers must read the R&R and staff must capture the endorser's signature.

Program explanation during subsequent recertifications

- Restate the purpose of the current visit.
- Restate the reasons for eligibility, including the connection to the desired health outcome.
- Ask if the participant has any questions or concerns about WIC services, WIC foods or the use of the eWIC food benefits card.
- Offer the participant the *Food Benefits List* and a current *Colorado WIC Food List & Shopping Guide*.
- Request the endorser read/review the R&R in a language the individual understands.
- Capture the endorser's electronic signature at the time of recertification for each participant to indicate they have read, understand and agree with the R&R and understand when the certification ends. Compass attaches the captured signature to the participant's record.